

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on August 21, 2022.

The reasons for the complaint are as follows:

The complainant informed this entity of the publication of their phone number in a prostitution advertisement on the website ***URL.1.

To substantiate their claim, they attached a screenshot of the aforementioned advertisement, in which sexual services are offered, and where the complainant's phone number appears as a contact. The text of the advertisement stated, verbatim, the following:

"(...)"

The complainant also provided, along with their submission, a copy of the legal notice of the website regulating the use of the service of the portal ***URL.1, where the aforementioned advertisement was published. The content of this notice highlights that the portal is managed and commercially exploited by the company FLOSA ACI, S.L.

Furthermore, the complainant asserts in their submission that, as a result of these facts, they have received a call and various WhatsApp messages requesting information regarding the sexual services published in the advertisement subject to the complaint.

SECOND: Considering these circumstances and in accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the aforementioned company FLOSA ACI, S.L., so that it could analyze the situation and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on November 3, 2022, as stated in the certificate included in the file.

Although the notification was validly carried out by electronic means, and the procedure was considered completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was returned as "Returned to Origin due to excess (Not collected at Office)" on November 24, 2022, after two unsuccessful delivery attempts on November 14 and 16, 2022.

No response was received to this forwarding letter.

THIRD: On November 21, 2022, following the provisions of Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: In light of these facts, on November 11, 2022, the General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

First, a search was conducted on the website of the advertisement indicated in the complaint. On July 3, 2022, the existence of the publication of said advertisement was verified at the following address:

***URL.2

Subsequently, considering the unsuccessful postal attempts to forward to FLOSA ACI, S.L., a query was made to the Central Commercial Registry, whereby it was learned that said entity was dissolved on October 22, 2018. However, upon consulting the internet domain registry, it was confirmed that the

domain "***DOMINIO.1" was renewed on November 26, 2022, by the registrar NOMINALIA INTERNET, S.L. (hereinafter, NOMINALIA).

After becoming aware of this fact, a request was made to said company for the data of the domain holder and the billing address, receiving on December 27, 2022, a letter from the aforementioned company, providing the details of the individual, as well as those of the domain holder, both corresponding to B.B.B. with NIF ***NIF.1.

Once this data was obtained, the domain holder was requested to provide the complete identification of the responsible party of the website, as well as the IP address corresponding to the session of the author of the publication of the advertisement subject to the complaint.

On February 16, 2023, this entity received a letter from the aforementioned holder, through which, on one hand, they declared to also be responsible for the referred website. On the other hand, the requested IP address related to the session of the author of the publication was provided, indicating the following IP Code: ***IP.1.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
3/8

Having identified the aforementioned IP address, a request is made to the operator of the same, TELEFÓNICA DE ESPAÑA, S.L.U., for information regarding the ownership of its assignment, receiving on March 1, 2023, a written response from said operator providing the requested information. Upon consulting the relevant department, we are informed that the identifying and address data of the mentioned IP are as follows: C.C.C. with NIF ***NIF.1 and address at ***DIRECCIÓN.1.

Finally, on February 17, 2023, it was verified that the content subject to the complaint has been removed.

FIFTH: On July 20, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the complained party, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

Against this initiation agreement, the complained party did not submit any allegations.

SIXTH: On November 29, 2023, a resolution proposal was made, proposing a fine of 10,000 euros for the commission of an infringement of Article 83.5 a) of the GDPR, classified under Article 6.1 of the same text, relating to the principle of lawfulness in the processing of personal data of individuals.

SEVENTH: The resolution proposal was notified on 04/03/2024 by ordinary mail to the complained party, as evidenced by the acknowledgment of receipt in the file.

EIGHTH: On 14/03/2024, the complained party submitted a written statement of allegations to this Agency, in which the following was stated:

"We argue that no member of our family knows the person referenced in this file, nor do we have any intention of causing any harm to this person. We are unaware if someone has accessed our internet or devices through a method such as phishing or a similar method and has been able to carry out this action using our internet services. The residence where the internet was located is an apartment block, and it is unknown if others have been able to connect through it to carry out this act. We request that these issues be taken into account, and having consulted this with a lawyer, we understand that we cannot prove our innocence, which indicates that we should reach some type of agreement to reduce the sanction and make prompt payment, as we cannot prove that we have not committed the crime we are accused of."

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: It is proven that the phone number of the complaining party was published without their consent in an advertisement on the website ***URL.1. This advertisement offered sexual massages. This fact is evidenced by the screenshot attached to the complaint and was subsequently confirmed by the present authority during the investigation proceedings.

SECOND: The complaining party claims to have received calls and WhatsApp messages requesting

information regarding the services advertised on the aforementioned website, which evidences the association of their phone number with the mentioned advertisement.

THIRD: The publication of the advertisement subject to the complaint was carried out by the complained party, which has also been established following the investigation actions of the present authority. During the course of these actions, the domain owner of the page where the advertisement was located provided the IP address of the author of said advertisement, an IP address that, according to the operator, corresponds to the complained party.

FOURTH: The complained party has stated that they do not know the affected person, nor did they intend to cause any harm to them. They also do not know if an external party has been able to access their device to carry out the action subject to the present procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

Article 4 “Definitions” of the GDPR defines the following terms for the purposes of the Regulation:

“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, or an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.”

5/8

location, an online identifier, or one or more elements specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that person;”

“2) ‘treatment’: any operation or set of operations performed on personal data or sets of personal data, whether by automated or non-automated procedures, such as collection, recording, organization, structuring, storage, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination, or any other form of enabling access, comparison or interconnection, limitation, erasure, or destruction;”

For its part, Article 53.1 of Law 39/2015 of October 1, on Common Administrative Procedure of Public Administrations establishes a catalog of rights possessed by interested parties in any administrative procedure. Likewise, the second paragraph of said article establishes specific rights possessed by the alleged responsible parties in the case of administrative procedures of a sanctioning nature:

“2. In addition to the rights provided for in the previous paragraph, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights:

[...]

b) The presumption of non-existence of administrative responsibility until proven otherwise.”

III

Legality of the processing of personal data

The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: “Personal data shall be:

a) Processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, and transparency);

(...)"

The principle of legality is primarily regulated in Article 6 of the GDPR. The circumstances that allow the processing of personal data to be considered lawful are enumerated in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the application at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

In this regard, Recital 40 of the GDPR states that "For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis laid down by law, whether in this Regulation or by virtue of other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is party or for the purpose of taking steps at the request of the data subject prior to entering into a contract."

IV

Conclusion

Without prejudice to the evidence presented that results from the proven facts and the investigations carried out by this authority, it is essential to consider that, for the imposition of any type of sanctioning procedure, including those instructed in the field of personal data protection, it is essential to reliably establish the responsibility of the alleged responsible party for the facts attributed to them, in accordance with the principles of the sanctioning power guaranteed by Law 40/2015 of October 1 on the Legal Regime of the Public Sector.

As evidenced by the proven facts, the ownership of the IP address provided by the telecommunications operator is the only incriminating evidence available in the present procedure.

C/ Jorge Juan, 6

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7/8

The respondent has claimed not to know the affected individual nor to have any intention of causing harm and, furthermore, raises the possibility that third parties may have illegitimately accessed their devices or connections to commit the act attributed to them. This statement introduces a reasonable doubt regarding the direct identification and responsibility of the respondent in the improper publication of the advertisement. According to Article 53, second paragraph, of Law 39/2015 on the Common Administrative Procedure of Public Administrations and Article 48 of the GDPR, the presumption of non-existence of administrative liability must be guaranteed until proven otherwise. In this case, it has not been definitively determined that the respondent was the one who directly committed the infringement of personal data. The determination of the ownership of the IP address does not necessarily imply that the respondent was the material author of the infringement, especially in a context where multiple individuals may have access to the same internet network, as suggested by the

respondent's allegation regarding the possible unauthorized use of their network by third parties. In light of the above, it is proposed to archive the procedure due to insufficient evidence to directly attribute the facts to the respondent. This decision is based on the principles of legality, responsibility, and the presumption of non-existence of administrative liability, as well as the absence of conclusive evidence that unequivocally links the respondent to the action that gave rise to the complaint. However, it should be noted that this archiving does not prevent the opening of new investigations if new evidence arises in the future that may shed light on the facts in a more conclusive manner. Therefore, in accordance with the applicable legislation and having assessed the criteria previously mentioned, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE the present sanctioning procedure against C.C.C. with NIF ***NIF.1

SECOND: TO NOTIFY this resolution to C.C.C. with NIF ***NIF.1

In accordance with the provisions of Article 50 of the LOPDGGD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGGD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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